

HOUSE No. 1323

The Commonwealth of Massachusetts

PRESENTED BY:

Alan Silvia

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to insurance coverage for individuals with autism.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Alan Silvia</i>	<i>7th Bristol</i>	<i>1/14/2025</i>

HOUSE No. 1323

By Representative Silvia of Fall River, a petition (accompanied by bill, House, No. 1323) of Alan Silvia relative to insurance coverage for individuals with autism. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1149 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to insurance coverage for individuals with autism.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 chapter 32A of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by inserting after the word “forces”, in line 74, the following
3 words:- , and a child, regardless of age, diagnosed with autism spectrum disorders, as defined in
4 section 25.

5 SECTION 2. Subsection (a) of subdivision 2 of section 108 of chapter 175 of the General
6 Laws, as so appearing, is hereby amended by inserting after the word “persons”, in line 33, the
7 following words:- , including, but not limited to, dependent persons diagnosed with autism
8 spectrum disorders, as defined in section 47AA.

9 SECTION 3. Section 110 of chapter 175 of the General Laws, as so appearing, is hereby
10 amended by adding the following subdivision:-

(Q) A blanket or general policy of insurance described in subdivision (A), (C) or (D), except policies or certificates that are not health benefit plans, as defined in section 1 of chapter 176J, or coverage to Medicare or other governmental programs which shall be delivered, issued or renewed in the commonwealth, shall provide, as benefits to all group members having a place of employment in the commonwealth, coverage to dependent persons diagnosed with autism spectrum disorders, as defined in section 47AA.

SECTION 4. Chapter 176A of the General Laws is hereby amended by inserting after section 8OO, as inserted by section 48 of chapter 260 of the acts of 2020, the following section:-

Section 8PP. Any subscription certification under an individual or group nonprofit hospital service agreement, except certificates which provide stand-alone dental services, supplemental coverage to Medicare or other governmental programs, that is delivered, issued or renewed in the commonwealth, shall provide, as benefits to all individuals or to all group members having a principal place of employment within the commonwealth, coverage to dependents diagnosed with autism spectrum disorders, as defined in section 8DD.

SECTION 5. Chapter 176B of the General Laws is hereby amended by inserting after section 4OO, as inserted by section 50 of said chapter 260, the following section:-

Section 4PP. Any subscription certificate under an individual or group medical service agreement, except certificates that provide stand-alone dental services, supplemental coverage to Medicare or other governmental programs, that is delivered or issued or renewed in the commonwealth, shall provide, as benefits to all individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the

commonwealth, coverage to dependents diagnosed with autism spectrum disorders, as defined in section 4DD.

SECTION 6. Chapter 176G of the General Laws is hereby amended by inserting after section 4GG, as inserted by section 52 of said chapter 260, the following section:-

Section 4HH. A health maintenance contract, except certificates which provide stand-alone dental services, supplemental coverage to Medicare or other governmental programs, shall provide, as benefits to all individuals or to group members having a principal place of employment within the commonwealth, coverage to dependents diagnosed with autism spectrum disorders, as defined in section 4V.

SECTION 7. Section 1 of chapter 176J of the General Laws, as appearing in the 2018 Official Edition, is hereby amended by striking out the definition of “eligible dependent” and inserting in place thereof the following definition:-

“Eligible dependent”, the spouse or child of an eligible person, subject to the applicable terms of the health benefit plan covering such employee. The child of an eligible individual or eligible employee shall be considered an eligible dependent until the end of the child’s twenty-sixth year of age; provided, however, that a child diagnosed with autism spectrum disorders, as defined in section 47AA of chapter 175, shall be considered an eligible dependent regardless of age.